



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

November 19, 2021

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 12074
(TWELFTH REVISION)

EXPIRATION DATE: 2025-10-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Van Hool NV
Lier, Belgium

US AGENT: ETCetera International, Inc.
McKinney, TX
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes the manufacture, mark, sale, and use of certain DOT Specification 51 steel portable tanks or steel UN portable tanks conforming to the requirements of special provision T50. The portable tanks are manufactured in accordance with Section VIII, Division 2 of the ASME Code instead of Section VIII, Division 1, mounted in ISO frames, and are authorized for the transportation in commerce of Division 2.1 and 2.2 hazardous materials. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. In accordance with 49 CFR 107.107(a), party status may not be granted to a manufacturing special permit. These packagings may be used in accordance with 49 CFR 173.22a.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171- 180.
4. REGULATIONS FROM WHICH EXEMPTED: DOT specification 51 tanks: 49 CFR § 178.245-1(a) (October 1, 2005 Edition) in that tanks were designed and constructed in accordance with Section VIII, Division 2 of the ASME Code; and UN-T50 tanks: 49 CFR § 178.276(b) in that tanks are designed and constructed in accordance with Section VIII, Division 2 of the ASME Code.

5. BASIS: This special permit is based on the application on behalf of Van Hool NV, dated October 7, 2021, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Division 2.1 and 2.2 hazardous materials authorized for transportation in steel DOT Specification 51 portable tanks or steel UN T50 portable tanks	2.1 & 2.2	Various	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Packaging prescribed is a steel DOT Specification 51 portable tank or steel UN portable tank complying with special provision T50 that is designed, constructed and certified in accordance with Section VIII, Division 2 of the ASME Code, and stamped with the ASME “U2” stamp and Code Cases 2279, 2265, and 2261. Each portable tank must be constructed in accordance with Van Hool NV drawings 69444-006B, 69444-170A, 98032701, 98032702, 108692-006, and 108692-154 and with specifications and calculations on file with the Office of Hazardous Materials Safety (OHMS) and in accordance with the following provisions:

- (1) Code: Tanks must be steel DOT Specification 51 or steel UN portable tanks complying with special provision T50 in all respects except the design code. This special permit authorizes the use of Section VIII, Division 2, of the ASME Code as the design code provided the requirements of Code Case 2279 (U2 stamping of DOT Specification 51 tanks) or Code Case 2413 (U2 stamping of UN T50 tanks and Code Case 2265 (Use of SA612N material) are met. This special permit also authorizes the use of Code Case 2261 (Alternative design rules for tank heads).
- (2) Material: SA612N carbon steel.
- (3) Tank Capacity and Pressure: Based upon the design analysis submitted by Van Hool NV, the following range of designs is authorized:

Design Pressure (See Note)	150 psig min.; 500 psig max.
Water Capacity	4,500 USWG min.; 6,775 USWG max.

NOTE: Design pressure means “Maximum Allowable Working Pressure” as used in the ASME Code.

- (4) Pressure Relief: For each tank design, a 3-inch diameter spring-loaded safety relief valve set at 110% of the design pressure must be provided. A rupture disc in series with the relief valve is optional. The venting capacity requirement for each material must be determined by the flow formulas contained in the Compressed Gas Association (CGA) Pamphlet S-1.2.
- (5) Maximum Gross Weight: 74,955 lbs.
- (6) Design temperature Range: -40 °F to 131 °F.
- (7) Welded Joints: Welded joints must be 100% tested by a non-destructive method authorized by ASME Code.
- (8) Corrosion Allowance: 0.0.
- (9) G-Loadings: Vertical down - 2; Vertical up - 2 Longitudinal - 2; Transverse - 2.
- (10) Openings: Only the following openings (in any combination) may be provided on each tank:
 - (i) One (1) 20-inch diameter for the manway on the top or end;
 - (ii) One (1) 2-inch or 3-inch diameter for the liquid line on the bottom;
 - (ii) One (1) 2-inch diameter for the vapor line on the bottom;
 - (iii) One (1) 3-inch diameter for the pressure relief system on top;
 - (iv) One (1) ¾-inch diameter for the thermowell; and
 - (v) One (1) ¼-inch diameter for the pressure gauge.

NOTE 1: Except for the opening for the pressure relief device, the other openings must be grouped as described in DOT Specification 51 tanks: § 178.245-1(d); and UN-T50 tanks: § 178.276(c)(8).

NOTE 2: Each bottom outlet valve must be provided with a shear section that meets the requirements in § 178.337-12.

- (11) Insulation: Tank may be provided with a sunshield (optional).

(12) Baffles: Optional.

b. TESTING:

(1) Hydrostatic test certificates for each tank must be maintained by the owner and made available upon request to any representative of DOT.

(2) Each tank must be inspected and retested once every five years in accordance with § 180.605(c)(2) for DOT Specification 51 tanks or § 180.605(c)(1) for UN T50 tanks as prescribed.

c. OPERATIONAL CONTROLS:

(1) The pressure produced by the lading and any gas padding at 50 °C may not exceed the design pressure of the portable tank.

(2) The tank must be filled in accordance with the provisions of § 173.315.

(3) Each tank must be visually inspected prior to shipment to ensure that it has not been damaged during loading.

8. SPECIAL PROVISIONS:

a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this special permit for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this special permit.

b. A person who is not a holder of this special permit, but receives a package covered by this special permit, may reoffer it for transportation provided no modifications or changes are made to the package and it is offered for transportation in conformance with this special permit and the HMR.

c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

d. Each packaging manufactured under the authority of this special permit must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated by the Office of Hazardous Materials Safety for a specific manufacturing facility.

e. A current copy of this special permit must be maintained at each facility where the package is manufactured under this special permit. It must be made available to a DOT representative upon request.

f. MARKING:

(1) In addition to markings conforming to § 178.245-6 (for DOT Specification 51 tanks) or to § 178.274(i) (for UN T50 tanks) each portable tank must be plainly marked on both sides near the middle, in letters and numerals at least two inches high on a contrasting background, "DOT-SP 12074".

(2) Each pressure relief valve must be marked with its set pressure and flow rate in SCFH.

g. A test report documenting a satisfactory ISO prototype test for each tank design must be on file with OHMS prior to the first shipment.

h. New manufacture of DOT-51 portable tanks under this special permit after January 31, 2003 is not authorized.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, and cargo vessel.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

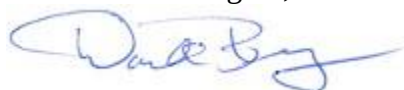
No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005),

amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Andrew Eckenrode/NICKS